

Tentative Rulings for August 27, 2026 Department 4

**To request oral argument, you must notify Judicial Secretary
Molly Frabotta at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 4 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 533 0910**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2203305	DOE vs ALVORD UNIFIED SCHOOL DISTRICT	MOTION TO COMPEL DEFENDANT ALVORD UNIFIED SCHOOL DISTRICT TO COMPLY WITH PLAINTIFF'S DEMAND TO PERMIT ENTRY INTO LAND AND TO PRODUCE TANGIBLE THINGS FOR INSPECTION, PHOTOGRAPHING

Tentative Ruling:

Continue Motion to October 28, 2026, at 8:30am in Department 4.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2305683	BAHENA vs VOLKSWAGEN GROUP OF AMERICA, INC.	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

GRANT the Motion for attorney's fees in the reduced reasonable amount of \$16,368.

The hourly billing rates for Plaintiff's counsel are excessive. The hourly billing rate for Stephen Basinger will be reduced to \$500/hour, and for Derek Chipman, to \$425/hour. The time required to prepare this motion (4.1 hours) is excessive and will be reduced to 2.5 hours. The time anticipated for preparation of the Reply and attending the hearing (8.1 hours) will be reduced to 2.5 hours. The total reduction to the lodestar is \$3,356.50. No multiplier is warranted or awarded. The total fee award is \$16,368 (\$19,724.50 - \$3,356.50)

3.

CASE #	CASE NAME	HEARING NAME
CVRI2404373	LOPEZ vs SPEC CONSTRUCTION CO., INC.	MOTION TO QUASH DEPOSITION SUBPOENAS FOR PRODUCTION OF BUSINESS RECORDS TO TILDEN-COIL CONSTRUCTION, INC. AND NEFF CONSTRUCTION, INC

Tentative Ruling:

DENY the Motion to Quash. Modify the SDT so that all social security numbers of non-party individuals are redacted. No Sanctions.

Defendants have not met their burden to show a violation of a right to privacy. Here, the information sought is personal, identifying information. The identification of names, addresses, and telephone numbers of potential witnesses is a routine and essential part of pretrial discovery. Defendants never identify the specific privacy rights allegedly

infringed. In addition, Defendants objections on the grounds of irrelevancy, overly broad, unduly burdensome and Labor Code § 1776(e), all lack merit.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2506383	HADDAD vs CIRCLE K STORES INC.	MOTION TO COMPEL ARBITRATION AND STAY PROCEEDINGS

Tentative Ruling:

GRANT the Motion. STAY the action pending arbitration. Set the matter for a Status Conference post arbitration for October 13, 2027, at 8:30am in Department 4.

Defendant has established that it's on-boarding Workday system adequately ensures that Plaintiff's signature to the arbitration agreement was properly obtained and that all procedures were followed. In addition, the court finds no procedural or substantive unconscionability in the Arbitration Agreement.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2602356	KUNG vs CITY OF RIVERSIDE	DEMURRER ON COMPLAINT

Tentative Ruling:

Continue the hearing on the Motion to October 8, 2026, at 8:30am in Department 4 for a further meet and confer effort.

CCP § 431.41 requires the parties to meet and confer *in person, by telephone, or by videoconference* to comply with their meet and confer obligations. Here, counsel for the City of Riverside, Judith N. Gallardo, only sent a letter with no follow-up attempt to personally talk to Plaintiff's counsel.

Defense counsel to submit a supplemental declaration at least 10 days before the continued hearing date, stating how the parties met and conferred, and outlining the remaining issues for the court to resolve.